

SELLER'S PROPERTY DISCLOSURE STATEMENT

SPD

This form recommended and approved for, but not restricted to use by, the members of the Pennsylvania Association of Realtors® (PAR).

1 **PROPERTY** _____
2 **SELLER** _____

3 INFORMATION REGARDING THE REAL ESTATE SELLER DISCLOSURE LAW

4 The Real Estate Seller Disclosure Law (68 P.S. §7301, et seq.) requires that before an agreement of sale is signed, the seller in a residential
5 real estate transfer must disclose all known **material defects** about the property being sold that are not readily observable. A **material defect**
6 is a problem with a residential real property or any portion of it that would have a significant adverse impact on the value of the property or
7 that involves an unreasonable risk to people on the property. The fact that a structural element, system or subsystem is at or beyond the end
8 of its normal useful life is not by itself a material defect.

9 This property disclosure statement ("Statement") includes disclosures beyond the basic requirements of the Law and is designed to assist
10 Seller in complying with disclosure requirements and to assist Buyer in evaluating the property being considered. Sellers who wish to see
11 or use the basic disclosure form can find the form on the website of the Pennsylvania State Real Estate Commission. Neither this Statement
12 nor the basic disclosure form limits Seller's obligation to disclose a material defect.

13 This Statement discloses Seller's knowledge of the condition of the Property as of the date signed by Seller and **is not a substitute for any**
14 **inspections or warranties** that Buyer may wish to obtain. **This Statement is not a warranty of any kind by Seller or a warranty or rep-**
15 **resentation by any listing real estate broker, any selling real estate broker, or their licensees.** Buyer is encouraged to address concerns
16 about the condition of the Property that may not be included in this Statement.

17 **The Law provides exceptions (listed below) where a property disclosure statement does not have to be completed. All other sellers**
18 **are obligated to complete a property disclosure statement, even if they do not occupy or have never occupied the Property.**

- 19 1. Transfers by a fiduciary during the administration of a decedent estate, guardianship, conservatorship or trust.
20 2. Transfers as a result of a court order.
21 3. Transfers to a mortgage lender that results from a buyer's default and subsequent foreclosure sales that result from default.
22 4. Transfers from a co-owner to one or more other co-owners.
23 5. Transfers made to a spouse or direct descendant.
24 6. Transfers between spouses as a result of divorce, legal separation or property settlement.
25 7. Transfers by a corporation, partnership or other association to its shareholders, partners or other equity owners as part of a plan of
26 liquidation.
27 8. Transfers of a property to be demolished or converted to non-residential use.
28 9. Transfers of unimproved real property.
29 10. Transfers of new construction that has never been occupied and:
30 a. The buyer has received a one-year warranty covering the construction;
31 b. The building has been inspected for compliance with the applicable building code or, if none, a nationally recognized model
32 building code; and
33 c. A certificate of occupancy or a certificate of code compliance has been issued for the dwelling.

34 COMMON LAW DUTY TO DISCLOSE

35 Although the provisions of the Real Estate Seller Disclosure Law exclude some transfers from the requirement of completing a disclo-
36 sure statement, the Law does not excuse the seller's common law duty to disclose any known material defect(s) of the Property in order
37 to avoid fraud, misrepresentation or deceit in the transaction. **This duty continues until the date of settlement.**

38 EXECUTOR, ADMINISTRATOR, TRUSTEE SIGNATURE BLOCK

39 According to the provisions of the Real Estate Seller Disclosure Law, the undersigned executor, administrator or trustee is not required
40 to fill out a Seller's Property Disclosure Statement. **The executor, administrator or trustee, must, however, disclose any known**
41 **material defect(s) of the Property.**

42 _____ DATE _____

43 Seller's Initials Date _____

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Buyer's Initials Date _____



44 **Check yes, no, unknown (unk) or not applicable (N/A) for each question.** Be sure to check N/A when a question does not apply to the
 45 Property. Check unknown when the question does apply to the Property but you are not sure of the answer. All questions must be answered.

46 **1. SELLER'S EXPERTISE**

47 (A) Does Seller possess expertise in contracting, engineering, architecture, environmental assessment or
 48 other areas related to the construction and conditions of the Property and its improvements?

49 (B) Is Seller the landlord for the Property?

50 (C) Is Seller a real estate licensee?

51 **Explain any "yes" answers in Section 1:** _____
 52 _____

	Yes	No	Unk	N/A
A	☐	☐		
B	☐	☐		
C	☐	☐		

53 **2. OWNERSHIP/OCCUPANCY**

54 (A) **Occupancy**

55 1. When was the Property most recently occupied? _____

56 2. By how many people? _____

57 3. Was Seller the most recent occupant?

58 4. If "no," when did Seller most recently occupy the Property? _____

59 (B) **Role of Individual Completing This Disclosure.** Is the individual completing this form:

60 1. The owner

61 2. The executor or administrator

62 3. The trustee

63 4. An individual holding power of attorney

64 (C) When was the Property acquired? _____

65 (D) List any animals that have lived in the residence(s) or other structures during your ownership: _____
 66 _____

67 **Explain Section 2 (if needed):** _____
 68 _____

	Yes	No	Unk	N/A
A1			☐	
A2			☐	
A3	☐			
A4			☐	
B1	☐	☐		
B2	☐	☐		
B3	☐	☐		
B4	☐	☐		
C			☐	

69 **3. CONDOMINIUMS/PLANNED COMMUNITIES/HOMEOWNERS ASSOCIATIONS**

70 (A) Disclosures for condominiums and cooperatives are limited to Seller's particular unit(s). Disclosures
 71 regarding common areas or facilities are not required by the Real Estate Seller Disclosure Law.

72 (B) **Type.** Is the Property part of a(n):

73 1. Condominium

74 2. Homeowners association or planned community

75 3. Cooperative

76 4. Other type of association or community

77 (C) If "yes," how much are the fees? \$ _____, paid (☐ Monthly) (☐ Quarterly) (☐ Yearly)

78 (D) If "yes," are there any community services or systems that the association or community is responsi-
 79 ble for supporting or maintaining? Explain: _____

80 (E) If "yes," provide the following information: _____

81 1. Community Name _____

82 2. Contact _____

83 3. Mailing Address _____

84 4. Telephone Number _____

85 (F) How much is the capital contribution/initiation fee(s)? \$ _____

86 **Notice to Buyer:** A buyer of a resale unit in a condominium, cooperative, or planned community must receive a copy of the declaration
 87 (other than the plats and plans), the by-laws, the rules or regulations, and a certificate of resale issued by the association, condominium,
 88 cooperative, or planned community. Buyers may be responsible for capital contributions, initiation fees or similar one-time fees in addition
 89 to regular maintenance fees. The buyer will have the option of canceling the agreement with the return of all deposit monies until the cer-
 90 tificate has been provided to the **buyer** and for five days thereafter or until conveyance, whichever occurs first.

91 **4. ROOFS AND ATTIC**

92 (A) **Installation**

93 1. When was or were the roof or roofs installed? _____

94 2. Do you have documentation (invoice, work order, warranty, etc.)? _____

95 (B) **Repair**

96 1. Was the roof or roofs or any portion of it or them replaced or repaired during your ownership?

97 2. If it or they were replaced or repaired, were any existing roofing materials removed?

98 (C) **Issues**

99 1. Has the roof or roofs ever leaked during your ownership?

100 2. Have there been any other leaks or moisture problems in the attic?

101 3. Are you aware of any past or present problems with the roof(s), attic, gutters, flashing or down-
 102 spouts?

	Yes	No	Unk	N/A
A1			☐	
A2	☐	☐		☐
B1	☐	☐	☐	
B2	☐	☐	☐	☐
C1	☐	☐	☐	
C2	☐	☐	☐	☐
C3	☐	☐		

103 Seller's Initials Date _____

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Buyer's Initials Date _____

104 **Check yes, no, unknown (unk) or not applicable (N/A) for each question.** Be sure to check N/A when a question does not apply to the
105 Property. Check unknown when the question does apply to the Property but you are not sure of the answer. All questions must be answered.

106 **Explain any "yes" answers in Section 4. Include the location and extent of any problem(s) and any repair or remediation efforts,**
107 **the name of the person or company who did the repairs and the date they were done:** _____
108 _____

109 **5. BASEMENTS AND CRAWL SPACES**

110 **(A) Sump Pump**

- 111 1. Does the Property have a sump pit? If "yes," how many? _____
112 2. Does the Property have a sump pump? If "yes," how many? _____
113 3. If it has a sump pump, has it ever run?
114 4. If it has a sump pump, is the sump pump in working order?

115 **(B) Water Infiltration**

- 116 1. Are you aware of any past or present water leakage, accumulation, or dampness within the base-
117 ment or crawl space?
118 2. Do you know of any repairs or other attempts to control any water or dampness problem in the
119 basement or crawl space?
120 3. Are the downspouts or gutters connected to a public sewer system?

121 **Explain any "yes" answers in Section 5. Include the location and extent of any problem(s) and any repair or remediation efforts,**
122 **the name of the person or company who did the repairs and the date they were done:** _____
123 _____
124 _____

125 **6. TERMITES/WOOD-DESTROYING INSECTS, DRYROT, PESTS**

126 **(A) Status**

- 127 1. Are you aware of past or present dryrot, termites/wood-destroying insects or other pests on the
128 Property?
129 2. Are you aware of any damage caused by dryrot, termites/wood-destroying insects or other pests?

130 **(B) Treatment**

- 131 1. Is the Property currently under contract by a licensed pest control company?
132 2. Are you aware of any termite/pest control reports or treatments for the Property?

133 **Explain any "yes" answers in Section 6. Include the name of any service/treatment provider, if applicable:** _____
134 _____
135 _____

136 **7. STRUCTURAL ITEMS**

137 **(A)** Are you aware of any past or present movement, shifting, deterioration, or other problems with walls,
138 foundations or other structural components?

139 **(B)** Are you aware of any past or present problems with driveways, walkways, patios or retaining walls on
140 the Property?

141 **(C)** Are you aware of any past or present water infiltration in the house or other structures, other than the
142 roof(s), basement or crawl space(s)?

143 **(D) Stucco and Exterior Synthetic Finishing Systems**

- 144 1. Is any part of the Property constructed with stucco or an Exterior Insulating Finishing System
145 (EIFS) such as Dryvit or synthetic stucco, synthetic brick or synthetic stone?
146 2. If "yes," indicate type(s) and location(s) _____
147 3. If "yes," provide date(s) installed _____

148 **(E)** Are you aware of any fire, storm/weather-related, water, hail or ice damage to the Property?

149 **(F)** Are you aware of any defects (including stains) in flooring or floor coverings?

150 **Explain any "yes" answers in Section 7. Include the location and extent of any problem(s) and any repair or remediation efforts,**
151 **the name of the person or company who did the repairs and the date the work was done:** _____
152 _____

153 **8. ADDITIONS/ALTERATIONS**

154 **(A)** Have any additions, structural changes or other alterations (including remodeling) been made to the
155 Property during your ownership? Itemize and date all additions/alterations below.

Addition, structural change or alteration (continued on following page)	Approximate date of work	Were permits obtained? (Yes/No/Unk/NA)	Final inspections/ approvals obtained? (Yes/No/Unk/NA)

161 **Seller's Initials** _____ **Date** _____

Buyer's Initials _____ **Date** _____

162 **Check yes, no, unknown (unk) or not applicable (N/A) for each question.** Be sure to check N/A when a question does not apply to the
163 Property. Check unknown when the question does apply to the Property but you are not sure of the answer. All questions must be answered.

164			
165			
166	Addition, structural change or alteration	Approximate date of work	Were permits obtained? (Yes/No/Unk/NA)
167			Final inspections/ approvals obtained? (Yes/No/Unk/NA)
168			
169			
170			
171			
172			

173 ☐ A sheet describing other additions and alterations is attached.

174 (B) Are you aware of any private or public architectural review control of the Property other than zoning
175 codes? If "yes," explain: _____

Yes	No	Unk	N/A
☐	☐		

176 **Note to Buyer:** The PA Construction Code Act, 35 P.S. §7210 et seq. (effective 2004), and local codes establish standards for building and
177 altering properties. Buyers should check with the municipality to determine if permits and/or approvals were necessary for disclosed work
178 and if so, whether they were obtained. Where required permits were not obtained, the municipality might require the current owner to up-
179 grade or remove changes made by the prior owners. Buyers can have the Property inspected by an expert in codes compliance to determine
180 if issues exist. Expanded title insurance policies may be available for Buyers to cover the risk of work done to the Property by previous
181 owners without a permit or approval.

182 **Note to Buyer:** According to the PA Stormwater Management Act, each municipality must enact a Storm Water Management Plan for
183 drainage control and flood reduction. The municipality where the Property is located may impose restrictions on impervious or semi-per-
184 vious surfaces added to the Property. Buyers should contact the local office charged with overseeing the Stormwater Management Plan
185 to determine if the prior addition of impervious or semi-pervious areas, such as walkways, decks, and swimming pools, might affect your
186 ability to make future changes.

187 **9. WATER SUPPLY**

188 (A) **Source.** Is the source of your drinking water (check all that apply):

- 189 1. Public
190 2. A well on the Property
191 3. Community water
192 4. A holding tank
193 5. A cistern
194 6. A spring
195 7. Other _____
196 8. If no water service, explain: _____

197 (B) **General**

- 198 1. When was the water supply last tested? _____
199 Test results: _____
200 2. Is the water system shared?
201 3. If "yes," is there a written agreement?
202 4. Do you have a softener, filter or other conditioning system?
203 5. Is the softener, filter or other treatment system leased? From whom?
204 6. If your drinking water source is not public, is the pumping system in working order? If "no,"
205 explain: _____

206 (C) **Bypass Valve** (for properties with multiple sources of water)

- 207 1. Does your water source have a bypass valve?
208 2. If "yes," is the bypass valve working?

209 (D) **Well**

- 210 1. Has your well ever run dry?
211 2. Depth of well _____
212 3. Gallons per minute: _____, measured on (date) _____
213 4. Is there a well that is used for something other than the primary source of drinking water?
214 If "yes," explain _____
215 5. If there is an unused well, is it capped?

	Yes	No	Unk	N/A
A1	☐	☐	☐	
A2	☐	☐	☐	
A3	☐	☐	☐	
A4	☐	☐	☐	
A5	☐	☐	☐	
A6	☐	☐	☐	
A7	☐	☐	☐	
B1			☐	☐
B2	☐	☐	☐	☐
B3	☐	☐	☐	☐
B4	☐	☐	☐	☐
B5	☐	☐	☐	☐
B6	☐	☐	☐	☐
C1	☐	☐	☐	☐
C2	☐	☐	☐	☐
D1	☐	☐	☐	☐
D2			☐	☐
D3			☐	☐
D4	☐	☐	☐	
D5	☐	☐	☐	☐

216 Seller's Initials Date _____

Buyer's Initials Date _____

217 **Check yes, no, unknown (unk) or not applicable (N/A) for each question.** Be sure to check N/A when a question does not apply to the
218 Property. Check unknown when the question does apply to the Property but you are not sure of the answer. All questions must be answered.

219 (E) **Issues**

- 220 1. Are you aware of any leaks or other problems, past or present, relating to the water supply,
221 pumping system and related items?
222 2. Have you ever had a problem with your water supply?

	Yes	No	Unk	N/A
E1	☐	☐	☒	☐
E2	☐	☐	☐	☐

223 **Explain any problem(s) with your water supply. Include the location and extent of any problem(s) and any repair or remediation efforts, the name of the person or company who did the repairs and the date the work was done:** _____
224 _____
225 _____

226 **10. SEWAGE SYSTEM**

227 (A) **General**

- 228 1. Is the Property served by a sewage system (public, private or community)?
229 2. If "no," is it due to unavailability or permit limitations?
230 3. When was the sewage system installed (or date of connection, if public)? _____
231 4. Name of current service provider, if any: _____

232 (B) **Type** Is your Property served by:

- 233 1. Public
234 2. Community (non-public)
235 3. An individual on-lot sewage disposal system
236 4. Other, explain: _____

237 (C) **Individual On-lot Sewage Disposal System.** (check all that apply):

- 238 1. Is your sewage system within 100 feet of a well?
239 2. Is your sewage system subject to a ten-acre permit exemption?
240 3. Does your sewage system include a holding tank?
241 4. Does your sewage system include a septic tank?
242 5. Does your sewage system include a drainfield?
243 6. Does your sewage system include a sandmound?
244 7. Does your sewage system include a cesspool?
245 8. Is your sewage system shared?
246 9. Is your sewage system any other type? Explain: _____
247 10. Is your sewage system supported by a backup or alternate system?

248 (D) **Tanks and Service**

- 249 1. Are there any metal/steel septic tanks on the Property?
250 2. Are there any cement/concrete septic tanks on the Property?
251 3. Are there any fiberglass septic tanks on the Property?
252 4. Are there any other types of septic tanks on the Property? Explain _____
253 5. Where are the septic tanks located? _____
254 6. When were the tanks last pumped and by whom? _____
255 _____

256 (E) **Abandoned Individual On-lot Sewage Disposal Systems and Septic**

- 257 1. Are you aware of any abandoned septic systems or cesspools on the Property?
258 2. If "yes," have these systems, tanks or cesspools been closed in accordance with the municipality's
259 ordinance?

260 (F) **Sewage Pumps**

- 261 1. Are there any sewage pumps located on the Property?
262 2. If "yes," where are they located? _____
263 3. What type(s) of pump(s)? _____
264 4. Are pump(s) in working order?
265 5. Who is responsible for maintenance of sewage pumps? _____
266 _____

267 (G) **Issues**

- 268 1. How often is the on-lot sewage disposal system serviced? _____
269 2. When was the on-lot sewage disposal system last serviced and by whom? _____
270 _____
271 3. Is any waste water piping not connected to the septic/sewer system?
272 4. Are you aware of any past or present leaks, backups, or other problems relating to the sewage
273 system and related items?

	Yes	No	Unk	N/A
A1	☐	☐	☐	☒
A2	☐	☐	☐	☐
A3	☒	☒	☐	☐
A4	☒	☒	☐	☐
B1	☐	☐	☐	☒
B2	☐	☐	☐	☒
B3	☐	☐	☐	☒
B4	☐	☐	☐	☒
C1	☐	☐	☐	☐
C2	☐	☐	☐	☐
C3	☐	☐	☐	☐
C4	☐	☐	☐	☐
C5	☐	☐	☐	☐
C6	☐	☐	☐	☐
C7	☐	☐	☐	☐
C8	☐	☐	☐	☐
C9	☐	☐	☐	☐
C10	☐	☐	☐	☐
D1	☐	☐	☐	☒
D2	☐	☐	☐	☒
D3	☐	☐	☐	☒
D4	☐	☐	☐	☒
D5	☒	☒	☐	☐
D6	☒	☒	☐	☐
E1	☐	☐	☒	☒
E2	☐	☐	☐	☐
F1	☐	☐	☐	☒
F2	☒	☒	☐	☐
F3	☒	☒	☐	☐
F4	☐	☐	☐	☐
F5	☒	☒	☐	☐
G1	☒	☒	☐	☐
G2	☒	☒	☐	☐
G3	☐	☐	☐	☐
G4	☐	☐	☒	☐

275 **Check yes, no, unknown (unk) or not applicable (N/A) for each question.** Be sure to check N/A when a question does not apply to the
276 Property. Check unknown when the question does apply to the Property but you are not sure of the answer. All questions must be answered.

277 **Explain any "yes" answers in Section 10. Include the location and extent of any problem(s) and any repair or remediation ef-**
278 **forts, the name of the person or company who did the repairs and the date the work was done:** _____
279

280 **11. PLUMBING SYSTEM**

281 (A) **Material(s).** Are the plumbing materials (check all that apply):

- 282 1. Copper
283 2. Galvanized
284 3. Lead
285 4. PVC
286 5. Polybutylene pipe (PB)
287 6. Cross-linked polyethylene (PEX)
288 7. Other _____

289 (B) Are you aware of any past or present problems with any of your plumbing fixtures (e.g., including but
290 not limited to: kitchen, laundry, or bathroom fixtures; wet bars; exterior faucets; etc.)?
291 If "yes," explain: _____
292

	Yes	No	Unk	N/A
A1	☐	☐	☐	☐
A2	☐	☐	☐	☐
A3	☐	☐	☐	☐
A4	☐	☐	☐	☐
A5	☐	☐	☐	☐
A6	☐	☐	☐	☐
A7	☐	☐	☐	☐
B	☐	☐	☐	☐

293 **12. DOMESTIC WATER HEATING**

294 (A) **Type(s).** Is your water heating (check all that apply):

- 295 1. Electric
296 2. Natural gas
297 3. Fuel oil
298 4. Propane
299 If "yes," is the tank owned by Seller?
300 5. Solar
301 If "yes," is the system owned by Seller?
302 6. Geothermal
303 7. Other _____

304 (B) **System(s)**

- 305 1. How many water heaters are there? _____
306 Tanks _____ Tankless _____
307 2. When were they installed? _____
308 3. Is your water heater a summer/winter hook-up (integral system, hot water from the boiler, etc.)?

309 (C) Are you aware of any problems with any water heater or related equipment?
310 If "yes," explain: _____
311

	Yes	No	Unk	N/A
A1	☐	☐	☐	☐
A2	☐	☐	☐	☐
A3	☐	☐	☐	☐
A4	☐	☐	☐	☐
A5	☐	☐	☐	☐
A6	☐	☐	☐	☐
A7	☐	☐	☐	☐
B1	☐	☐	☐	☐
B2	☐	☐	☐	☐
B3	☐	☐	☐	☐
C	☐	☐	☐	☐

312 **13. HEATING SYSTEM**

313 (A) **Fuel Type(s).** Is your heating source (check all that apply):

- 314 1. Electric
315 2. Natural gas
316 3. Fuel oil
317 4. Propane
318 If "yes," is the tank owned by Seller?
319 5. Geothermal
320 6. Coal
321 7. Wood
322 8. Solar shingles or panels
323 If "yes," is the system owned by Seller?
324 9. Other: _____

325 (B) **System Type(s)** (check all that apply):

- 326 1. Forced hot air
327 2. Hot water
328 3. Heat pump
329 4. Electric baseboard
330 5. Steam
331 6. Radiant flooring
332 7. Radiant ceiling

	Yes	No	Unk	N/A
A1	☐	☐	☐	☐
A2	☐	☐	☐	☐
A3	☐	☐	☐	☐
A4	☐	☐	☐	☐
A5	☐	☐	☐	☐
A6	☐	☐	☐	☐
A7	☐	☐	☐	☐
A8	☐	☐	☐	☐
A9	☐	☐	☐	☐
B1	☐	☐	☐	☐
B2	☐	☐	☐	☐
B3	☐	☐	☐	☐
B4	☐	☐	☐	☐
B5	☐	☐	☐	☐
B6	☐	☐	☐	☐
B7	☐	☐	☐	☐

333 Seller's Initials Date _____

Buyer's Initials Date _____

334 **Check yes, no, unknown (unk) or not applicable (N/A) for each question.** Be sure to check N/A when a question does not apply to the
 335 Property. Check unknown when the question does apply to the Property but you are not sure of the answer. All questions must be answered.

		Yes	No	Unk	N/A
336	8. Pellet stove(s)	☐	☐	☐	☐
337	How many and location? _____	☐	☐	☐	☐
338	9. Wood stove(s)	☐	☐	☐	☐
339	How many and location? _____	☐	☐	☐	☐
340	10. Coal stove(s)	☐	☐	☐	☐
341	How many and location? _____	☐	☐	☐	☐
342	11. Wall-mounted split system(s)	☐	☐	☐	☐
343	How many and location? _____	☐	☐	☐	☐
344	12. Other: _____	☐	☐	☐	☐
345	13. If multiple systems, provide locations _____	☐	☐	☐	☐
346	_____	☐	☐	☐	☐
347	(C) Status				
348	1. Are there any areas of the house that are not heated?	☐	☐	☐	☐
349	If "yes," explain: _____	☐	☐	☐	☐
350	2. How many heating zones are in the Property? _____	☐	☐	☐	☐
351	3. When was each heating system(s) or zone installed? _____	☐	☐	☐	☐
352	4. When was the heating system(s) last serviced? _____	☐	☐	☐	☐
353	5. Is there an additional and/or backup heating system? If "yes," explain: _____	☐	☐	☐	☐
354	_____	☐	☐	☐	☐
355	6. Is any part of the heating system subject to a lease, financing or other agreement?	☐	☐	☐	☐
356	If "yes," explain: _____	☐	☐	☐	☐
357	(D) Fireplaces and Chimneys				
358	1. Are there any fireplaces? How many? _____	☐	☐	☐	☐
359	2. Are all fireplaces working?	☐	☐	☐	☐
360	3. Fireplace types (wood, gas, electric, etc.): _____	☐	☐	☐	☐
361	4. Was the fireplace(s) installed by a professional contractor or manufacturer's representative?	☐	☐	☐	☐
362	5. Are there any chimneys (from a fireplace, water heater or any other heating system)?	☐	☐	☐	☐
363	6. How many chimneys? _____	☐	☐	☐	☐
364	7. When were they last cleaned? _____	☐	☐	☐	☐
365	8. Are the chimneys working? If "no," explain: _____	☐	☐	☐	☐
366	(E) Fuel Tanks				
367	1. Are you aware of any heating fuel tank(s) on the Property?	☐	☐	☐	☐
368	2. Location(s), including underground tank(s): _____	☐	☐	☐	☐
369	3. If you do not own the tank(s), explain: _____	☐	☐	☐	☐
370	(F) Are you aware of any problems or repairs needed regarding any item in Section 13? If "yes,"	☐	☐	☐	☐
371	explain: _____	☐	☐	☐	☐
372	14. AIR CONDITIONING SYSTEM				
373	(A) Type(s). Is the air conditioning (check all that apply):				
374	1. Central air	☐	☐	☐	☐
375	a. How many air conditioning zones are in the Property? _____	☐	☐	☐	☐
376	b. When was each system or zone installed? _____	☐	☐	☐	☐
377	c. When was each system last serviced? _____	☐	☐	☐	☐
378	2. Wall units	☐	☐	☐	☐
379	How many and the location? _____	☐	☐	☐	☐
380	3. Window units	☐	☐	☐	☐
381	How many? _____	☐	☐	☐	☐
382	4. Wall-mounted split units	☐	☐	☐	☐
383	How many and the location? _____	☐	☐	☐	☐
384	5. Other _____	☐	☐	☐	☐
385	6. None _____	☐	☐	☐	☐
386	(B) Are there any areas of the house that are not air conditioned?	☐	☐	☐	☐
387	If "yes," explain: _____	☐	☐	☐	☐
388	(C) Are you aware of any problems with any item in Section 14? If "yes," explain: _____	☐	☐	☐	☐
389	_____	☐	☐	☐	☐

391 **Check yes, no, unknown (unk) or not applicable (N/A) for each question.** Be sure to check N/A when a question does not apply to the
 392 Property. Check unknown when the question does apply to the Property but you are not sure of the answer. All questions must be answered.

393 **15. ELECTRICAL SYSTEM**

394 **(A) Type(s)**

- 395 1. Does the electrical system have fuses?
 396 2. Does the electrical system have circuit breakers?
 397 3. Is the electrical system solar powered?
 398 a. If "yes," is it entirely or partially solar powered? _____
 399 b. If "yes," is any part of the system subject to a lease, financing or other agreement? If "yes,"
 400 explain: _____

401 **(B) What is the system amperage?** _____

402 **(C) Are you aware of any knob and tube wiring in the Property?**

403 **(D) Are you aware of any problems or repairs needed in the electrical system? If "yes," explain:** _____
 404 _____

	Yes	No	Unk	N/A
A1	☐	☐	☐	☐
A2	☐	☐	☐	☐
A3	☐	☐	☐	☐
3a	☐	☐	☐	☐
3b	☐	☐	☐	☐
B	☐	☐	☐	☐
C	☐	☐	☐	☐
D	☐	☐	☐	☐

405 **16. OTHER EQUIPMENT AND APPLIANCES**

406 **(A) THIS SECTION IS INTENDED TO IDENTIFY PROBLEMS OR REPAIRS** and must be completed for each item that
 407 will, or may, be included with the Property. The terms of the Agreement of Sale negotiated between Buyer and Seller will deter-
 408 mine which items, if any, are included in the purchase of the Property. **THE FACT THAT AN ITEM IS LISTED DOES NOT**
 409 **MEAN IT IS INCLUDED IN THE AGREEMENT OF SALE.**

410 **(B) Are you aware of any problems or repairs needed to any of the following:**

Item	Yes	No	N/A	Item	Yes	No	N/A
A/C window units	☐	☐	☐	Pool/spa heater	☐	☐	☐
Attic fan(s)	☐	☐	☐	Range/oven	☐	☐	☐
Awnings	☐	☐	☐	Refrigerator(s)	☐	☐	☐
Carbon monoxide detectors	☐	☐	☐	Satellite dish	☐	☐	☐
Ceiling fans	☐	☐	☐	Security alarm system	☐	☐	☐
Deck(s)	☐	☐	☐	Smoke detectors	☐	☐	☐
Dishwasher	☐	☐	☐	Sprinkler automatic timer	☐	☐	☐
Dryer	☐	☐	☐	Stand-alone freezer	☐	☐	☐
Electric animal fence	☐	☐	☐	Storage shed	☐	☐	☐
Electric garage door opener	☐	☐	☐	Trash compactor	☐	☐	☐
Garage transmitters	☐	☐	☐	Washer	☐	☐	☐
Garbage disposal	☐	☐	☐	Whirlpool/tub	☐	☐	☐
In-ground lawn sprinklers	☐	☐	☐	Other:	☐	☐	☐
Intercom	☐	☐	☐	1.	☐	☐	☐
Interior fire sprinklers	☐	☐	☐	2.	☐	☐	☐
Keyless entry	☐	☐	☐	3.	☐	☐	☐
Microwave oven	☐	☐	☐	4.	☐	☐	☐
Pool/spa accessories	☐	☐	☐	5.	☐	☐	☐
Pool/spa cover	☐	☐	☐	6.	☐	☐	☐

431 **(C) Explain any "yes" answers in Section 16:** _____
 432 _____

433 **17. POOLS, SPAS AND HOT TUBS**

434 **(A) Is there a swimming pool on the Property? If "yes,"**

- 435 1. Above-ground or in-ground? _____
 436 2. Saltwater or chlorine? _____
 437 3. If heated, what is the heat source? _____
 438 4. Vinyl-lined, fiberglass or concrete-lined? _____
 439 5. What is the depth of the swimming pool? _____
 440 6. Are you aware of any problems with the swimming pool?
 441 7. Are you aware of any problems with any of the swimming pool equipment (cover, filter, ladder,
 442 lighting, pump, etc.)?

443 **(B) Is there a spa or hot tub on the Property?**

- 444 1. Are you aware of any problems with the spa or hot tub?
 445 2. Are you aware of any problems with any of the spa or hot tub equipment (steps, lighting, jets,
 446 cover, etc.)?

447 **(C) Explain any problems in Section 17:** _____
 448 _____

	Yes	No	Unk	N/A
A	☐	☐	☐	☐
A1	☐	☐	☐	☐
A2	☐	☐	☐	☐
A3	☐	☐	☐	☐
A4	☐	☐	☐	☐
A5	☐	☐	☐	☐
A6	☐	☐	☐	☐
A7	☐	☐	☐	☐
B	☐	☐	☐	☐
B1	☐	☐	☐	☐
B2	☐	☐	☐	☐

449 Seller's Initials Date _____

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Buyer's Initials Date _____

450 **Check yes, no, unknown (unk) or not applicable (N/A) for each question.** Be sure to check N/A when a question does not apply to the
451 Property. Check unknown when the question does apply to the Property but you are not sure of the answer. All questions must be answered.

452 **18. WINDOWS**

453 (A) Have any windows or skylights been replaced during your ownership of the Property?

454 (B) Are you aware of any problems with the windows or skylights?

455 **Explain any "yes" answers in Section 18. Include the location and extent of any problem(s) and any repair, replacement or**
456 **remediation efforts, the name of the person or company who did the repairs and the date the work was done:** _____

	Yes	No	Unk	N/A
A	☐	☐	☐	☐
B	☐	☐	☐	☐

458 **19. LAND/SOILS**

459 **(A) Property**

460 1. Are you aware of any fill or expansive soil on the Property?

461 2. Are you aware of any sliding, settling, earth movement, upheaval, subsidence, sinkholes or earth
462 stability problems that have occurred on or affect the Property?

463 3. Are you aware of sewage sludge (other than commercially available fertilizer products) being
464 spread on the Property?

465 4. Have you received written notice of sewage sludge being spread on an adjacent property?

466 5. Are you aware of any existing, past or proposed mining, strip-mining, or any other excavations on
467 the Property?

	Yes	No	Unk	N/A
A1	☐	☐	☐	☐
A2	☐	☐	☐	☐
A3	☐	☐	☐	☐
A4	☐	☐	☐	☐
A5	☐	☐	☐	☐

468 **Note to Buyer:** The Property may be subject to mine subsidence damage. Maps of the counties and mines where mine subsidence
469 damage may occur and further information on mine subsidence insurance are available through Department of Environmental
470 Protection Mine Subsidence Insurance Fund, (800) 922-1678 or ra-epmsi@pa.gov.

471 **(B) Preferential Assessment and Development Rights**

472 Is the Property, or a portion of it, preferentially assessed for tax purposes, or subject to limited devel-
473 opment rights under the:

474 1. Farmland and Forest Land Assessment Act - 72 P.S. §5490.1, et seq. (Clean and Green Program)

475 2. Open Space Act - 16 P.S. §11941, et seq.

476 3. Agricultural Area Security Law - 3 P.S. §901, et seq. (Development Rights)

477 4. Any other law/program: _____

	Yes	No	Unk	N/A
B1	☐	☐	☐	☐
B2	☐	☐	☐	☐
B3	☐	☐	☐	☐
B4	☐	☐	☐	☐

478 **Note to Buyer:** Pennsylvania has enacted the Right to Farm Act (3 P.S. § 951-957) in an effort to limit the circumstances under
479 which agricultural operations may be subject to nuisance suits or ordinances. Buyers are encouraged to investigate whether any
480 agricultural operations covered by the Act operate in the vicinity of the Property.

481 **(C) Property Rights**

482 Are you aware of the transfer, sale and/or lease of any of the following property rights (by you or a
483 previous owner of the Property):

484 1. Timber

485 2. Coal

486 3. Oil

487 4. Natural gas

488 5. Mineral or other rights (such as farming rights, hunting rights, quarrying rights) Explain:

	Yes	No	Unk	N/A
C1	☐	☐	☐	☐
C2	☐	☐	☐	☐
C3	☐	☐	☐	☐
C4	☐	☐	☐	☐
C5	☐	☐	☐	☐

490 **Note to Buyer:** Before entering into an agreement of sale, Buyer can investigate the status of these rights by, among other means,
491 engaging legal counsel, obtaining a title examination of unlimited years and searching the official records in the county Office of
492 the Recorder of Deeds, and elsewhere. Buyer is also advised to investigate the terms of any existing leases, as Buyer may be subject
493 to terms of those leases.

494 **Explain any "yes" answers in Section 19:** _____

496 **20. FLOODING, DRAINAGE AND BOUNDARIES**

497 **(A) Flooding/Drainage**

498 1. Is any part of this Property located in a wetlands area?

499 2. Is the Property, or any part of it, designated a Special Flood Hazard Area (SFHA)?

500 3. Do you maintain flood insurance on this Property?

501 4. Are you aware of any past or present drainage or flooding problems affecting the Property?

502 5. Are you aware of any drainage or flooding mitigation on the Property?

503 6. Are you aware of the presence on the Property of any man-made feature that temporarily or per-
504 manently conveys or manages storm water, including any basin, pond, ditch, drain, swale, culvert,
505 pipe or other feature?

506 7. If "yes," are you responsible for maintaining or repairing that feature which conveys or manages
507 storm water for the Property?

	Yes	No	Unk	N/A
A1	☐	☐	☐	☐
A2	☐	☐	☐	☐
A3	☐	☐	☐	☐
A4	☐	☐	☐	☐
A5	☐	☐	☐	☐
A6	☐	☐	☐	☐
A7	☐	☐	☐	☐

508 **Seller's Initials** **Date** _____

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Buyer's Initials **Date** _____

Check yes, no, unknown (unk) or not applicable (N/A) for each question. Be sure to check N/A when a question does not apply to the Property. Check unknown when the question does apply to the Property but you are not sure of the answer. All questions must be answered.

Explain any "yes" answers in Section 20(A). Include dates, the location and extent of flooding and the condition of any man-made storm water management features: _____

(B) Boundaries

1. Are you aware of encroachments, boundary line disputes, or easements affecting the Property?
2. Is the Property accessed directly (without crossing any other property) by or from a public road?
3. Can the Property be accessed from a private road or lane?
 - a. If "yes," is there a written right of way, easement or maintenance agreement?
 - b. If "yes," has the right of way, easement or maintenance agreement been recorded?
4. Are you aware of any shared or common areas (driveways, bridges, docks, walls, etc.) or maintenance agreements?

	Yes	No	Unk	N/A
B1	☐	☐	☐	☐
B2	☐	☐	☐	☐
B3	☐	☐	☐	☐
3a	☐	☐	☐	☐
3b	☐	☐	☐	☐
B4	☐	☐	☐	☐

Note to Buyer: Most properties have easements running across them for utility services and other reasons. In many cases, the easements do not restrict the ordinary use of the property, and Seller may not be readily aware of them. Buyers may wish to determine the existence of easements and restrictions by examining the property and ordering an Abstract of Title or searching the records in the Office of the Recorder of Deeds for the county before entering into an agreement of sale.

Explain any "yes" answers in Section 20(B): _____

21. HAZARDOUS SUBSTANCES AND ENVIRONMENTAL ISSUES

(A) Mold and Indoor Air Quality (other than radon)

1. Are you aware of any tests for mold, fungi, or indoor air quality in the Property?
2. Other than general household cleaning, have you taken any efforts to control or remediate mold or mold-like substances in the Property?

	Yes	No	Unk	N/A
A1	☐	☐	☐	☐
A2	☐	☐	☐	☐

Note to Buyer: Individuals may be affected differently, or not at all, by mold contamination. If mold contamination or indoor air quality is a concern, buyers are encouraged to engage the services of a qualified professional to do testing. Information on this issue is available from the United States Environmental Protection Agency and may be obtained by contacting IAQ INFO, P.O. Box 37133, Washington, D.C. 20013-7133, 1-800-438-4318.

(B) Radon

1. Are you aware of any tests for radon gas that have been performed in any buildings on the Property?
2. If "yes," provide test date and results _____
3. Are you aware of any radon removal system on the Property?

	Yes	No	Unk	N/A
B1	☐	☐	☐	☐
B2	☐	☐	☐	☐
B3	☐	☐	☐	☐

(C) Lead Paint

If the Property was constructed, or if construction began, before 1978, you must disclose any knowledge of, and records and reports about, lead-based paint on the Property on a separate disclosure form.

1. Are you aware of any lead-based paint or lead-based paint hazards on the Property?
2. Are you aware of any reports or records regarding lead-based paint or lead-based paint hazards on the Property?

	Yes	No	Unk	N/A
C1	☐	☐	☐	☐
C2	☐	☐	☐	☐

(D) Tanks

1. Are you aware of any existing underground tanks?
2. Are you aware of any underground tanks that have been removed or filled?

	Yes	No	Unk	N/A
D1	☐	☐	☐	☐
D2	☐	☐	☐	☐

(E) Dumping. Has any portion of the Property been used for waste or refuse disposal or storage?

If "yes," location: _____

	Yes	No	Unk	N/A
E	☐	☐	☐	☐

(F) Other

1. Are you aware of any past or present hazardous substances on the Property (structure or soil) such as, but not limited to, asbestos or polychlorinated biphenyls (PCBs)?
2. Are you aware of any other hazardous substances or environmental concerns that may affect the Property?
3. If "yes," have you received written notice regarding such concerns?
4. Are you aware of testing on the Property for any other hazardous substances or environmental concerns?

	Yes	No	Unk	N/A
F1	☐	☐	☐	☐
F2	☐	☐	☐	☐
F3	☐	☐	☐	☐
F4	☐	☐	☐	☐

Explain any "yes" answers in Section 21. Include test results and the location of the hazardous substance(s) or environmental issue(s): _____

22. MISCELLANEOUS

(A) Deeds, Restrictions and Title

1. Are there any deed restrictions or restrictive covenants that apply to the Property?
2. Are you aware of any historic preservation restriction or ordinance or archeological designation associated with the Property?

	Yes	No	Unk	N/A
A1	☐	☐	☐	☐
A2	☐	☐	☐	☐

Seller's Initials **Date** _____

Buyer's Initials **Date** _____

568 **Check yes, no, unknown (unk) or not applicable (N/A) for each question.** Be sure to check N/A when a question does not apply to the
569 Property. Check unknown when the question does apply to the Property but you are not sure of the answer. All questions must be answered.

570 3. Are you aware of any reason, including a defect in title or contractual obligation such as an option
571 or right of first refusal, that would prevent you from giving a warranty deed or conveying title to the
572 Property?

	Yes	No	Unk	N/A
A3	☐	☐		
B1	☐	☐		
B2	☐	☐		
B3	☐	☐		
C1	☐	☐		
C2	☐	☐		
D1	☐	☐		

573 **(B) Financial**

574 1. Are you aware of any public improvement, condominium or homeowner association assessments
575 against the Property that remain unpaid or of any violations of zoning, housing, building, safety or
576 fire ordinances or other use restriction ordinances that remain uncorrected?

577 2. Are you aware of any mortgages, judgments, encumbrances, liens, overdue payments on a support
578 obligation, or other debts against this Property or Seller that cannot be satisfied by the proceeds of
579 this sale?

580 3. Are you aware of any insurance claims filed relating to the Property during your ownership?

581 **(C) Legal**

582 1. Are you aware of any violations of federal, state, or local laws or regulations relating to this Prop-
583 erty?

584 2. Are you aware of any existing or threatened legal action affecting the Property?

585 **(D) Additional Material Defects**

586 1. Are you aware of any material defects to the Property, dwelling, or fixtures which are not dis-
587 closed elsewhere on this form?

588 ***Note to Buyer:** A material defect is a problem with a residential real property or any portion of it that would have a significant
589 adverse impact on the value of the property or that involves an unreasonable risk to people on the property. The fact that a
590 structural element, system or subsystem is at or beyond the end of the normal useful life of such a structural element, system or
591 subsystem is not by itself a material defect.*

592 2. **After completing this form, if Seller becomes aware of additional information about the Property, including through
593 inspection reports from a buyer, the Seller must update the Seller's Property Disclosure Statement and/or attach the
594 inspection report(s).** These inspection reports are for informational purposes only.

595 **Explain any "yes" answers in Section 22:** _____
596 _____

597 **23. ATTACHMENTS**

598 **(A) The following are part of this Disclosure if checked:**

599 ☐ Seller's Property Disclosure Statement Addendum (PAR Form SDA)

600 ☐ _____
601 ☐ _____
602 ☐ _____

603 **The undersigned Seller represents that the information set forth in this disclosure statement is accurate and complete to the best**
604 **of Seller's knowledge. Seller hereby authorizes the Listing Broker to provide this information to prospective buyers of the prop-**
605 **erty and to other real estate licensees. SELLER ALONE IS RESPONSIBLE FOR THE ACCURACY OF THE INFORMA-**
606 **TION CONTAINED IN THIS STATEMENT. If any information supplied on this form becomes inaccurate following comple-**
607 **tion of this form, Seller shall notify Buyer in writing.**

608 SELLER		DATE	_____
609 SELLER		DATE	_____
610 SELLER		DATE	_____
611 SELLER		DATE	_____
612 SELLER		DATE	_____
613 SELLER		DATE	_____

RECEIPT AND ACKNOWLEDGEMENT BY BUYER			
615 The undersigned Buyer acknowledges receipt of this Statement. Buyer acknowledges that this Statement is not a warranty and 616 that, unless stated otherwise in the sales contract, Buyer is purchasing this property in its present condition. It is Buyer's re- 617 sponsibility to satisfy himself or herself as to the condition of the property. Buyer may request that the property be inspected, at 618 Buyer's expense and by qualified professionals, to determine the condition of the structure or its components.			
619 BUYER		DATE	_____
620 BUYER		DATE	_____
621 BUYER		DATE	_____